

CONVEYANCE AGREEMENT

THIS AGREEMENT is made at Brecksville, Ohio, by and between the **BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT**, 6638 Mill Road, Brecksville, OH 44141 ("District") and the **CITY OF BRECKSVILLE**, an Ohio municipal corporation, 9069 Brecksville Road, Brecksville, Ohio 44141 ("City").

WITNESSETH:

NOW, THEREFORE, the parties hereto agree as follows:

1. Agreement to Convey. City agrees to convey to District and District agrees to take title to certain real state commonly known as Parcel D of Blossom Hill Park and known as Permanent Parcel No 603-09-004 and further described on **EXHIBIT A** together with all rights, privileges and easements appurtenant thereto and all records, documents and all governmental permits and information in any form or media, to the extent any exists and all right, title and interest of the City in and to all public and private streets, roads, avenues, alleys and passageways, open or proposed, in front of or abutting such property, (collectively called the "**Blossom Property**"). The Property contains approximately 25 acres.

District agrees to convey to City and City agrees to take title to certain real estate known as the "Central School," "Stadium Drive," and "Comstock House" and known as Permanent Parcel Nos. 601-34-004, 601-29-003, and 601-34-003 and further described on **EXHIBITS B C and D**, together with all rights, privileges and easements appurtenant thereto and all records, documents and all governmental permits and information in any form or media, to the extent any exists and all right, title and interest of the District in and to all public and private streets, roads, avenues, alleys and passageways, open or proposed, in front of or abutting such property, (collectively called the "**Properties**"). The Properties contains approximately 14.185 acres.

2. Land Swap. The District and City agree to an exchange of Premises pursuant to Ohio Revised Code §3313.40. The District and City agree to exchange each of their respective properties without compensating the other beyond the exchanged property. The following definitions shall apply to both the District and City, the party conveying property shall be referred to as the Grantor, and the party to whom the property is conveyed shall be referred to as the Grantee. In the event the Blossom Property does not receive approval for use as a School and Field House then, the Properties described in Paragraph 1 shall be deeded back to the District. This provision shall not merge into any deed transferring property from the District to the City.

3. **Additional Considerations.** District and City agree to develop a Shared Use Agreement describing and providing for the continued use of Stadium Drive by the District in a manner and under such terms as are consistent with its current use of Stadium Drive, which has been for the District's athletic programs and teams to practice on School Days until dusk.

4. (a) **Timing of Transfers.** The City shall transfer the approximately 25-acre portion of Parcel D upon the completion of the design necessary to determine where the school will be located and what land comprises the wetlands application process and the development of a legal description of the 25-acre portion of Parcel D needed to support the school. The District will transfer the Stadium Drive when the 25-acre portion of Parcel D is transferred. The District will execute a Quit Claim Deed to transfer the Central School Property when the 25-acre portion of Parcel D is transferred. Both parties shall convey marketable title to the Properties, by good and sufficient quitclaim deed fully and properly executed, free and clear of all liens, charges, defects, clouds on title, and encumbrances, except (i) restrictions, reservations and easements of record, as shall have been approved by each party as provided for in Subparagraph 4(c); (ii) zoning ordinances, if any; (iii) taxes and assessments, both general and special, which are a lien but not yet due and payable; and (iv) all legal highways.

5. **Property Condition.** Portions of Parcel D have been delineated as wetlands. The City will be responsible for obtaining and paying all costs associated with jurisdictional determination and permits from the Army Corp of Engineers and if applicable the OEPA related to any impact on those wetlands or the costs to obtain replacement wetlands. The District will provide information necessary for the City to obtain those permits. The District Premises shall be delivered free of all trash, debris and parties in possession to the City a closing.

6. **Conditions as to Performance of Grantor:**

(a) **Personal Property.** The Grantor reserves the right to remove from the Property, and thereby not include in the conveyance thereof, any and all moveable equipment and other personalty. If the Grantor fails to remove any such personal property prior to the Closing, those items remaining on the Property shall be included as part of the Property sold and conveyed to the Grantee, with the Grantor waiving any right to thereafter remove those items from the Property and the Grantee agreeing to accept them.

(b) Within five (5) business days after the date of this Agreement, Grantor shall provide to the Grantee originals or complete and accurate copies of all documents and other instruments in the possession of Grantor and all other

correspondence, instruments, documents and papers as may be relevant to the ownership, use and occupancy of the Property including but not limited to any deed, survey, tax assessment, title policy, grants or conveyances, documents that impose encumbrances on the Property, documents depicting encroachments from or onto the Property, documents pertaining to any pending or threatening condemnation, documents pertaining to any actual or threatened liens against the Property, documents related to the inspection of the Property for asbestos, bio-hazards, toxic waste and other environmental health or hazards and abatement of any such hazards, documents relating to compliance with, or potential, alleged or actual violation of, any statute, code, regulation, ordinance, order, judgment or ruling, pertaining to environmental matters or bio-hazard and toxic waste, all certificates of occupancy for the Property, all documents confirming or relating to the zoning status of the Property, and all documents relating to sanitary sewer or water service to the Property.

(c) All documents provided to the Grantee shall be treated as public records unless excluded as a public record in the Ohio Public Records Law. Copies of any studies or tests made by the Grantee shall be provided to the Grantor, except as set forth in the previous sentence, and shall not be revealed unless they fit within a public records exception, to any other person, firm or entity, other than any governmental agency for whom Grantee is seeking approval to develop the Property, without the express written consent of Grantor.

(d) Grantor shall have executed and delivered into escrow all of the documents required to be deposited by Grantor pursuant to this Agreement.

(e) Grantor shall, at Closing, be able to warrant to the best of its knowledge, it has received no notice that the Property is in violation of any Federal, State, Municipal or Environmental Law, rule, ordinance or regulation.

(f) The Board of Education has legislatively approved the conveyance of the property by the District without a public auction.

(g) The Brecksville City Council has legislatively approved the conveyance of the property by the City.

7. **Insurance and Risk of Loss.** Insurance carried by the Grantor shall be terminated effective as of the date of transfer of title to the Property. Grantee shall be solely responsible for acquiring insurance coverage on the Property upon the transfer of title.

8. **Closing Date and Possession.**

(a) Unless the parties otherwise agree in writing and subject to the conditions set forth herein, this transaction shall be closed within one hundred eighty (180) days, or at such earlier date as the Grantee and Grantor may agree to in writing (the "**Closing Date**").

(b) The Grantor shall remain in possession of the Property until the Closing Date at which time unencumbered possession in accordance with this Agreement shall be delivered to Grantee.

(c) On the date of transfer of possession to Grantee, Grantor shall deliver up and surrender to Grantee possession of the Property in substantially the same condition as the same shall be at the date of execution of this Agreement.

(d) Grantor agrees to be responsible for and shall pay all utility charges, or governmental assessments related to the extension of utilities incurred at the Property up to the close of business on the date of transfer of title and possession to Grantee.

9. **Charges.**

Each party will be responsible for the costs necessary to convey and record the property conveyed to them pursuant to this Agreement.

10. **No Commission to Broker or Agent.** Grantee and Grantor each represent that no realtor or broker is entitled to any commission or fee by or through Grantor or Grantee. Grantee and Grantor to hold each other harmless from any claim from any other realtor or broker for any commission or fee that may be due through Grantee, or Grantor, and each party shall hold the Escrow Agent harmless and the other party hereto harmless from any claim from any realtor or broker, as the case may be, pursuant to the Closing of this transaction;

11. **Representations and Warranties of Grantor.** Grantor hereby warrants that to the best of Grantor's knowledge:

(a) Grantor has received no written notice from any government authority of any code, building or zoning violations regarding the Property.

(b) There is no litigation, proceeding or action pending or threatened against or relating to Grantor or the Property which might affect the Property or which questions the validity of this Agreement or any action taken or to be taken by Grantor pursuant hereto.

(c) All documents provided by Grantor to Grantee or its agents during the Review Period and the site assessment of the Property are true and complete to the best of Grantor's knowledge.

(d) There are no contracts, leases, licenses or similar rights of third parties, or agreements affecting the right of use, ownership, occupancy or possession of the Property or any improvements located on the Property. No person or entity has an option or right of first refusal to purchase all or any part of the Property, nor does any party have any claim to the Property by reason of any Purchase Agreement, Option to Purchase, Right of First Refusal, Land Installment Contract, Lease or other similar agreement or instrument, or by adverse possession or other prescriptive right.

(e) Grantor has received no written notice from any governmental authority of any contemplated future assessments against the Property.

(f) No condemnation or appropriation action affecting the Property is pending nor has the Grantor received written notice of any contemplated condemnation or appropriation.

(g) The Property fronts on one (1) or more improved and dedicated streets.

(h) Grantor has not entered into any contracts or agreements in connection therewith which are not cancelable on or before the date of transfer of title and possession to Grantee.

(i) Neither the execution of this Agreement nor the consummation of the transactions contemplated hereby will constitute a violation of, or be in conflict with, or constitute a default under any term or provision of any agreement, instrument or lease to which Grantor is a party.

(j) The representations and warranties of Grantor set forth in this Agreement shall be true and correct on the Closing Date.

(k) The Grantor District is duly organized and validly existing and in good standing as a school district under the laws of the State of Ohio. The Grantor City is a duly organized and validly existing municipality under the laws of the State of Ohio.

(l) Grantor represents and warrants to Grantee that Grantor has full power, authority and legal right to enter into this Agreement and to consummate the transactions contemplated hereby.

All the representations and warranties set forth above in this Section shall be deemed renewed by Grantor on the date of Closing as if made at such time (subject only to any, to the extent applicable, changes expressly permitted in this Agreement).

12. Survival. Except as otherwise expressly provided in this Agreement, each of the representations, warranties and agreements contained in this Agreement shall survive the Closing and the transfer of possession and title to Grantee .

13. Defaults and Remedies.

(a) Either party hereto shall be deemed to be in default of this Agreement if such party fails or refuses to comply with the terms and conditions set forth herein for any reason other than the prior termination of this Agreement pursuant to a right to so terminate expressly set forth in this Agreement ("Event of Default").

(b) Upon the occurrence of an Event of Default, the non-defaulting party shall be entitled to exercise any and all rights and remedies to which the non-defaulting party may be entitled at law or in equity, including, but not limited to the right of specific performance.

(c) Grantor and Grantee agree that if any action at law or in equity, including an action for declaratory relief, is brought to enforce or interpret the provisions of this Agreement, the prevailing party shall be entitled to recover reasonable attorney's fees from the non-prevailing party, which fees may be set by the Court in the trial of such action or may be enforced in a separate action brought for that purpose, and such fees shall be in addition to any other relief which may be awarded.

14. Access and Information. Grantor shall permit Grantee and Grantee's representatives, agents and employees unlimited access to the Property at all reasonable times to the date of transfer of possession of the Property to Grantee. Grantee hereby waives any claims against Grantor for any personal injury to Grantee, its agents or representatives, resulting from any access by Grantee to the Property prior to the parties' execution of the Purchase Agreement.

15. Notices. Any notice which may be or is required to be given pursuant to the provisions of this Agreement shall be personally delivered, sent by certified or registered mail, postage prepaid, return receipt requested, or by overnight delivery service and addressed as follows:

Director, Department of Economic Development
9069 Brecksville Road
Brecksville, Ohio 44141, with a copy to

Director of Law
9069 Brecksville Road
Brecksville, OH 44141

Notice as to District shall be delivered to

Superintendent
Brecksville-Broadview Heights City School District
6638 Mill Road
Brecksville, OH 44141, with a copy to

David J. Riley, Esq.
The Riley Law Firm
24502 Cornerstone Drive
Westlake, Ohio 44145

16. Risk of Loss, Taking. Risk of loss until the Closing Date shall be borne exclusively by the Grantor. In the event of a taking of all or any portion of the Property by reason of eminent domain, or a deed in lieu thereof, the Grantee shall have the option of (i) terminating this Agreement, or (ii) accepting the Property, together with an assignment by Grantor of all of Grantor's rights and the proceeds of such taking or deed in lieu thereof. Notwithstanding anything herein contained to the contrary, in the event that the Grantee elects to terminate the Agreement pursuant to this section, and all funds paid or deposited by the Grantee shall be returned to the Grantee and the Grantor shall pay all title and survey fees and expenses.

17. Condition of the Property. Grantee, in the course of its inspections of the Property, prior to Closing, shall have no responsibility for the removal, transport or disposal of any Hazardous Materials derived from such tests and studies and costs thereof (including any local or State government generator fees), and the removal, transport and disposal of all such substances or wastes shall be the responsibility of Grantor. Grantor shall maintain the Property in substantially the same condition as of the date hereof, and in accordance with the same procedures and standards consistently applied by Grantor as of the date hereof in maintaining the Property.

18. Binding Effect. The terms and provisions of this Agreement shall be binding upon and inure to the benefit of Grantor and Grantee and their respective successors and assigns. Each person executing this Agreement in a representative capacity warrants their authority to do so.

19. Agreement for Further Execution. Prior to, at, and after the Closing Date, Grantor and Grantee shall also execute and deliver to Grantee or Grantor such other or further instruments of conveyance, sale, assignment or transfer, and shall take or cause to be taken such other or further action as Grantee or Grantor shall reasonably request at any time or from time to time in order to (a) vest, confirm or evidence in Grantee title and possession to all or part of the Property, or (b) effectuate, in any other manner, the terms and conditions of this Agreement. In addition, the Grantor shall, within seven (7) days before the Closing Date, submit the Limited

Warranty Deed to be recorded to the Grantee's attorney for approval, which approval shall not be unreasonably withheld.

20. Entire Agreement. This Agreement shall constitute the entire agreement between the parties herein and that no oral understanding shall be of any effect, and that any other understanding or changes of this Agreement must be in writing and signed by the parties.

21. Miscellaneous. This Agreement shall be governed by and construed in accordance with the laws of the State of Ohio. The invalidity or unenforceability of any term or provision of this Agreement or the non-application of such term or provision to any person or circumstance shall not impair or affect the remainder of this Agreement, and its application to other persons and circumstances and the remaining terms and provisions hereof shall not be invalidated but shall remain in full force and effect. This Agreement shall not be construed more strictly against one party than against the other merely by virtue of the fact that it may have been prepared by counsel for one of the parties, it being recognized that both Grantor and Grantee have contributed substantially and materially to the preparation of this Agreement. This Agreement may be executed in two (2) or more counterparts, each of which shall be deemed an original and all of which together shall constitute one (1) in the same instrument. Time is of the essence in this Agreement in each and all of its provisions. Any extension of time granted for the performance of any duty under this Agreement shall not be considered an extension of time for the performance of any other obligation under this Agreement. Captions, titles to sections and paragraph headings used herein are for convenience or reference and shall not be deemed a limit or alter any provisions hereof. The date of this Agreement is the last date on which both parties hereto have executed this Agreement.

IN WITNESS WHEREOF, the parties hereto have signed four (4) counterparts of this Agreement, each of which shall be deemed to be an original document, as of the day and year first set forth above.

WITNESSED BY:

**BOARD OF EDUCATION OF THE
BRECKSVILLE-BROADVIEW
HEIGHTS CITY SCHOOL
DISTRICT, OHIO**

_____ by: _____
_____, CHAIRPERSON

Date: _____

_____ by: _____
_____, CFO/Treasurer

Date: _____

WITNESSED BY: **CITY OF BRECKSVILLE, OHIO**

_____ by: _____

Date: _____

THIS INSTRUMENT PREPARED BY:

David J. Riley
The Riley Law Firm
24502 Cornerstone
Westlake, OH 44145

EXHIBITS "A" and "B"

Legal Description & Drawing

Permanent Parcel Nos.: